

25STCV20040 25STCV20040

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F03%2F2026

Source SHA-256: d7223c8c1adf8217a4060e08dd3335a4abfecfa2de162de0cdfba40c1a66cb17

Case Number: 25STCV20040 Hearing Date: August 3, 2026 Dept: 732

Laura Geiser. v. FCA US, LLC, et al.

Monday, August 3, 2026

CASE NUMBER: 25STCV20040

UNOPPOSED

Defendant FCA US, LLC's Motion for Lemon Law

Sanctions against Plaintiff Laura Geiser

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiffs Laura Geiser ("Plaintiff") purchased a 2018 Jeep Cherokee on January 3, 2019, with an express written warranty. (Complaint

¶¶ 7.) The vehicle was delivered with defects that could not be remedied within the warranty period. (Complaint ¶¶ 10–28.)

Procedural History: Plaintiffs

filed the Complaint on June 30, 2025, and filed the FAC on April 12, 2025, alleging six causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent Repair

6.

Fraudulent Concealment

This

court on May 18, 2026, overruled and denied Defendant's demurrer and motion to strike

Defendant

filed the present motion for lemon law discovery sanctions on June 26, 2026. No opposition has been filed.

Analysis

Claims against vehicle manufacturers under the Song Beverly Act are subject to special discovery provisions when those manufacturers elect to be governed by special procedures. (Code Civ. Proc. § 871.20, subd. (a).) In cases against such manufacturers, the parties are required "[w]ithin 60 days after the filing of the answer or other responsive pleading" to produce certain itemized categories of documents and information (Code Civ. Proc. § 871.26, subd. (f), (g), (h)) and to make available certain persons for limited deposition within 120 days. (Code Civ. Proc. § 871.26, subd. (c).)

The operative statute requires the disclosure of certain specified documents within 60 days of the filing of the defendant's responsive pleading. (See Code Civ. Proc. § 871.26, subd. (b) [60-day requirement], subd. (f), (g), (h) [defining documents and information to be produced].)

The failure to produce as required under the above statute warrants the following sanctions, on an escalating basis:

(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(3) For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer.

(4) For a manufacturer's or defendant's repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so.

(Code Civ. Proc. § 871.26, subd. (j)(1)–(4).)

Defendants FCA US, LLC and Chrysler Jeep Dodge Ram ("Defendants") seek sanctions against counsel for Plaintiff Laura Geiser ("Plaintiff") for the failure to provide initial required discovery disclosures under the above statute. Defendants filed their responsive pleading (a demurrer) on November 5, 2025, and initial disclosures were due within 60 days.

(Lopez Decl. ¶ 2.) But Plaintiff has not produced initial disclosures. (Lopez Decl. ¶¶ 4–5.)

Defendants have shown that Plaintiff has failed to provide initial required disclosures. Plaintiff has filed no opposition to the present motion.

The motion for sanctions is therefore GRANTED. Plaintiff's counsel shall pay \$1,500.00 to Defendants within 15 business days of this order.

Superior Court of California

County of Los Angeles

Department 732

Laura
Geiser.,

Plaintiff

v.

FCA US, LLC et al.,

Defendants.

Case No.:
25STCV20040

Hearing Date: August 3, 2026

[TENTATIVE] RULING RE:

Defendant

FCA US, LLC's Motion for Lemon Law Sanctions against Plaintiff Laura Geiser

Defendant

FCA US, LLC's Motion for

Lemon Law Sanctions against Plaintiff Laura Geiser is GRANTED. Sanctions in the amount of \$1,500.00 are awarded against Plaintiff's counsel, payable within 15 business days of this order.

Defendants to give notice.

Dated: August 3, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court